

25STCV29020 25STCV29020

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-14

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Case Number: 25STCV29020 Hearing Date: August 14, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

MICHAEL RICE, et al.,

Plaintiffs,

vs.

FORD MOTOR COMPANY, et al.,

Defendants.

Case No.:

25STCV29020

Hearing Date:

August 14, 2026

Hearing Time: 8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT FORD MOTOR COMPANY'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE,
SUMMARY ADJUDICATION

Background

On October 3, 2025, Plaintiffs Michael Rice and Bonnie Rice (jointly, "Plaintiffs") filed this lemon law action against Defendants Ford Motor Company ("Ford") and Magic Acquisition Corp., alleging four causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, and (4) breach of implied warranty of merchantability.

Ford now moves for summary judgment or, in the alternative, summary adjudication. Plaintiffs oppose. Ford replied.

Discussion

As a preliminary matter, the Court notes that it does not have a filing for the Declaration of Christopher Derhartounian and the exhibits attached thereto. In the Court's docket, it appears that Plaintiffs intended to file this declaration but inadvertently filed an additional opposition memorandum. Based on Ford's evidentiary objections, it appears that Plaintiffs adequately served Ford with the declaration. However, without a properly filed declaration with the Court, it is unable to consider the evidence. (See Code Civ. Proc., § 437c, subd. (c) ["the court shall consider all of the evidence set forth in the papers..."].) Accordingly, the Court will discuss with the parties a new hearing date for the motion for summary judgment so that Plaintiffs can correct the error.

Conclusion

Based on the foregoing, the Court continues the hearing on Ford's motion for summary judgment to _____ at 2:00 p.m. in Dept. 508. Plaintiffs are ordered to file the missing declaration within three days of the date of this Order.

Plaintiffs are ordered to give notice of this Order.

DATED: August 14, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court